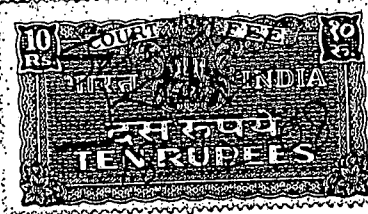


ANNEXURE - 1



IN THE HIGH COURT OF DELHI AT NEW DELHI
(ORDINARY ORIGINAL CIVIL JURISDICTION)
CS (OS) NO. OF 2008

IN THE MATTER OF :

1. Smt. Jatinder Kaur Nanda
W / O Shri Kuldip Singh Nanda
Permanent Address :
P.O. Box 700 809,
Plymouth, MI 48170, U.S.A.
Local Address :
E-10 / 9, Vasant Vihar,
New Delhi

2. Lt. Col. (Retd.) Surjit Singh
S / O Late Shri Pritam Singh
R / O A 1/ 334, Janakpuri, New Delhi

3. Shri Joginder Singh Gadok
S / O Late Shri Pritam Singh
Through his Attorney
Lt. Col. (Retd.) Surjit Singh
S / O Late Shri Pritam Singh
R / O A 1/ 334, Janakpuri, New Delhi

...Plaintiffs

VERSUS

Col. (Dr.) Pritpal Singh Gadhok
S / O Late Shri Pritam Singh,
R / O A-94, Defence Colony,
New Delhi

2nd Address
Army Base Hospital,
Lucknow Cantt. (U. P.)

...Defendant

SUIT FOR PARTITION OF PROPERTY NO. 42B, MALCHA
MARG, CHANKAYA PURI, NEW DELHI AND FOR RENDITION
OF THE ACCOUNTS

MOST RESPECTFULLY SHOWETH :

1. That plaintiff no. 1 is the daughter and plaintiff nos. 2 and 3 as well as
the defendant are sons of late Shri Pritam Singh. Plaintiff no. 1 is the

प्रमाणित

15/9/18

CS No.57292/16

JATINDER KAUR NANDA & ORS. VS. COL. (DR.) PRITPAL
SINGH

07.05.2018

Present: Ld. Proxy counsel for plaintiff no.1.

Plaintiff no.2 in person.

Plaintiff no.2 states that he is also appearing on behalf of
the plaintiff no.3 as ^{his} Power of Attorney.

Defendant in person.

Vide separate order, a final decree for partition is passed.

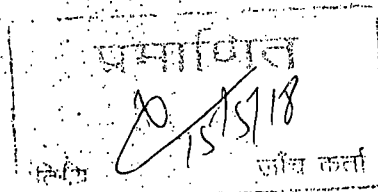
Decree sheet be drawn up. File be consigned to Record Room after
due compliance.

Praveen Kumar

(Praveen Kumar)

ADJ-05/PHC, NEW DELHI

07.05.2018



JATINDER KAUR NANDA & ORS. VS. COL. (DR.) PRITPAL
SINGH

07.05.2018

Order

1. This is a suit filed by the plaintiffs against the defendant for partition of property bearing no.42-B, Malcha Marg, Chanakya Puri, New Delhi (in short 'the suit property') which was owned by late Sh. Pritam Singh.

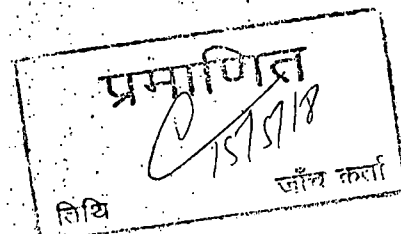
2. On 27.04.2010, a preliminary decree for partition was passed declaring the plaintiff nos.1 to 3 to be having 20% share each and the defendant having remaining 40% share in the suit property. A Commissioner was appointed for exploring the possibility of division of the property by *metes and bounds*.

3. Ld. Counsels for the plaintiffs have contended that the suit property is not divisible by *metes and bounds* and a final decree for partition of the suit property, by sale thereof and distribution of sale proceeds amongst the parties as per the shares declared in the preliminary decree for partition, be passed.

4. Ld. Counsel for the defendant has opposed the same. He has relied upon judgment – Shri Surender Kumar Gupta Vs. Shri Mahender Kumar Gupta, CM (M) No.1275/2010, decided by High Court of Delhi on 17.08.2011.

5. It is often found that the suits for partition remain pending indefinitely as the parties are unable to agree to a mutually acceptable mode of partition. The defendant is stated to be in

Praveen Kumar
7/5/18



22
occupation of a part of the property and his desire to delay is quite evident.

6. In her final report filed on 20.04.2011, Ld. Local Commissioner has observed to the effect, "...in spite of her visits and meetings of the parties held, no conclusive or mutually accepted mode of partition has been forthcoming...". Since 2010 parties have not been able to reach at a consensus to divide the property by *metes and bounds*. This court, is, therefore, satisfied that the division of the property by *metes and bounds* is not possible. There is no possibility of *inter se* bidding amongst the parties. The judgment relied upon by ld. Counsel for the defendant is not applicable to the facts of the present case.

7. Ld. Counsels for plaintiffs have not pressed for the relief of rendition of accounts.

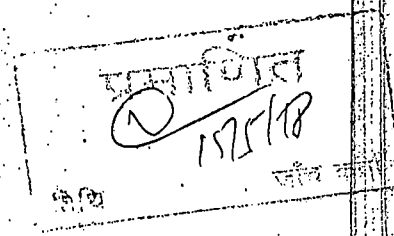
8. Accordingly, a final decree for partition is passed, of sale of property bearing no.42-B, Malcha Marg, Chanakya Puri, New Delhi and of distribution of sale proceeds thereof amongst the parties as per their shares declared in the preliminary decree for partition dated 27.04.2010. Decree sheet be drawn up.

File be consigned to Record Room after due compliance.

Praveen Kumar

(Praveen Kumar)

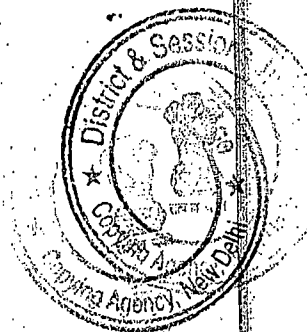
ADJ-05/PHC, NEW DELHI
07.05.2018



FINAL DECREE SHEET
THE COURT OF SH. PRAVEEN KUMAR
ADDITIONAL DISTRICT JUDGE-05 (PATIALA HOUSE COURTS) : NEW DELHI

CS No.57292/16

1. Smt. Jatinder Kaur Nanda
W/o Shri Kuldip Singh Nadna
Permanent Address:
P.O. Box 700 809, Plymouth, MI48170, U.S.A.
Local Address:
E-10/9, Vasant Vihar, New Delhi



2. Lt. Col. (Retd.) Surjit Singh
S/o Late Shri Pritam Singh
R/o A 1/334, Janakpuri, New Delhi

3. Shri Joginder Singh Gadok
S/o Late Shir Pritam Singh
Through his Attorney
Lt. Col. (Retd.) Surjit Singh
S/o Late Shri Pritam Singh
R/o A 1/334, Janakpuri, New Delhi

.....Plaintiffs

Versus

Col. (Dr.) Pritpal Singh Gadhok
S/o Late Shri Pritam Singh,
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New Delhi
2nd Address
Army Base Hospital,
Lucknow Cantt. (U.P.)

.....Defendants

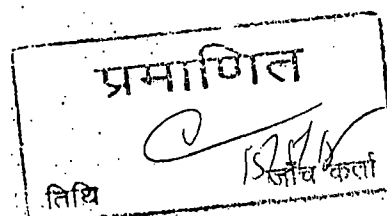
Date of institution of the case : 20.12.2008

Mrs. Bharti Kochhar Id. Counsel for plaintiff.
Sh. Vinay Sabharwal Id. Counsel for defendant.

Suit for Partition of Property No.42B, Malcha Marg, Chankaya Puri, New Delhi
and for rendition of the accounts.



Cont.....2
Praveen Kumar
Additional District Judge
New Delhi (05)
Patiala House Courts, N. Delhi



It is ordered that a final decree for partition is passed, of sale of property bearing no.42-B, Malcha Marg, Chanakya Puri, New Delhi and of distribution of sale proceeds thereof amongst the parties as per their shares declared in the preliminary decree for partition dated 27.04.2010.

COST OF SUITS

	Plaintiff		Defendant	
1	Stamp for Plaint	40.00	Stamp for Power	06.00
2	Stamp for Power	06.00	Stamps for Exhibits	-
3	Stamp for Exhibits	-	Stamps for Petition	-
4	Pleader's fee.	-	Pleader's fee on Rs.	-
5	Subsistence for witnesses	-	Subsistence for Witnesses	-
6	Commissioner's Fee	-	Commissioner's Fee	-
7	Service of Process	03.00	Service of Process	-
8	Miscellaneous.	264.00	Miscellaneous	69.00
	Total	313.00		75.00

Given, under my hand and the seal of the court, this 7th day of May, 2018.



Praveen Kumar
(Praveen Kumar)
ADJ-05/PHC, NEW DELHI
Additional District Judge
New Delhi (05)
Patiala House Courts, N. Delhi

Office of The District & Sessions Judge
Patiala House Courts, New Delhi
CERTIFIED TO BE TRUE COPY

[Signature]
Examiner
Date Copying Agency (Sessions)
Authorised under Section 76 of the
Indian Evidence Act, 1872